

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Trevor Hackett	Team: Squad #13	CCRB Case #: 201908155	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 09/07/2019 7:35 PM	Location of Incident: 1855 Hylan Boulevard	Precinct: 122	18 Mo. SOL 3/7/2021	EO SOL 10/22/2021	
Date/Time CV Reported Mon, 09/16/2019 11:14 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/16/2019 11:14 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Orleans	09784	964688	122 PCT
2. POF Alexandra Moreira	14252	937140	122 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Daniel Orleans	Abuse: Police Officer Daniel Orleans stopped the vehicle in which § 87(2)(b) was an occupant.	
B.POF Alexandra Moreira	Abuse: Police Officer Alexandra Moreira stopped the vehicle in which § 87(2)(b) was an occupant.	
C.POM Daniel Orleans	Abuse: Police Officer Daniel Orleans frisked § 87(2)(b)	
D.POM Daniel Orleans	Abuse: Police Officer Daniel Orleans searched § 87(2)(b)	
E.POM Daniel Orleans	Abuse: Police Officer Daniel Orleans searched the vehicle in which § 87(2)(b) was an occupant.	

Case Summary

On September 16, 2019, § 87(2)(b) filed this complaint with the CCRB over the phone.

On September 7, 2019, § 87(2)(b) was pulled over for failing to stop at a stop sign (**Allegations A and B – Abuse of Authority, exonerated**) in front of 1855 Hylan Boulevard in Staten Island by Police Officer Daniel Orleans and Police Officer Alexandra Moreira, both of the 122nd Precinct. PO Orleans ordered § 87(2)(b) to empty his pockets (**Allegation C – Abuse of Authority, exonerated**) and frisked § 87(2)(b) (**Allegation D – Abuse of Authority, exonerated**). PO Orleans searched § 87(2)(b)'s car and found a bag of marijuana (**Allegation E – Abuse of Authority, exonerated**). § 87(2)(b) was issued summons § 87(2)(b) (**Board Review 07**). § 87(2)(b) § 86(1)(3)&(4) § 87(2)(c)

Body Worn Camera footage was obtained from PO Orleans and PO Moriera. The footage is located in IAs # 37, 38, and 39 (**Board Review 01, 02, 03**), and summarized in IAs # 41, 42, and 43 (**Board Review 04, 05, 06**).

Findings and Recommendations

Allegation A: Abuse of Authority - Police Officer Daniel Orleans stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B: Abuse of Authority – Police Officer Alexandra Moreira stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation C: Abuse of Authority - Police Officer Daniel Orleans frisked § 87(2)(b).

Allegation D: Abuse of Authority - Police Officer Daniel Orleans searched § 87(2)(b).

Allegation E: Abuse of Authority - Police Officer Daniel Orleans searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) testified that he was driving and made a left turn onto Hylan Boulevard from Buel Avenue or Dongan Avenue ahead of a marked police SUV, occupied by PO Orleans and PO Moriera. § 87(2)(b) did not see the police officers when he turned and believed that he may have cut them off. The officers pulled over § 87(2)(b)'s vehicle. PO Orleans approached the driver's side door and PO Moreira approached the passenger side door. PO Orleans informed § 87(2)(b) that he had failed to yield to a stop sign, which § 87(2)(b) denied. PO Orleans and PO Moriera briefly returned to their vehicle. They returned to § 87(2)(b)'s vehicle, and PO Orleans told § 87(2)(b) that his car smelled of marijuana and ordered him to exit the vehicle.

PO Orleans ordered § 87(2)(b) to place his pocket contents onto § 87(2)(b)'s vehicle's roof. § 87(2)(b) complied and removed his phone, wallet, keys and inhaler. PO Orleans frisked § 87(2)(b)'s front and back pants pockets then reached his hands inside of § 87(2)(b)'s front pants pockets. No marijuana was recovered pursuant to the frisk or search. PO Orleans said he would search § 87(2)(b)'s vehicle. § 87(2)(b)'s back was to his vehicle and he did not see the areas where PO Orleans searched first, but § 87(2)(b) then witnessed PO Orleans search the trunk and its contents, including a portable amplifier, a coffee machine, and a gym bag. PO Orleans said he retrieved a small amount of marijuana from the trunk. § 87(2)(b) did not see the marijuana and did not know how it was packaged, but PO Orleans said that it was less than two ounces. PO Orleans issued § 87(2)(b)

§ 87(2)(b) a summons § 87(2)(b). During his CCRB interview, § 87(2)(b) acknowledged that his son had borrowed his vehicle shortly before the incident and may have smoked marijuana in the vehicle (**Board Review 08**).

PO Orleans testified that he was driving southbound on Hylan Boulevard with PO Orleans when he noticed a vehicle, driven by § 87(2)(b) fail to yield at a stop sign. PO Orleans pulled over § 87(2)(b)'s vehicle and approached the driver's side door. PO Orleans immediately smelled the odor of burning marijuana and noticed the "residue of green leaves" on the front passenger seat, which he believed may have been marijuana. PO Orleans ordered § 87(2)(b) to produce his documents and told § 87(2)(b) that he had run a stop sign, which § 87(2)(b) admitted doing. PO Orleans and PO Moriera returned to the police vehicle and ran § 87(2)(b)'s information.

When PO Orleans and PO Moriera returned to § 87(2)(b)'s vehicle, PO Orleans told § 87(2)(b) that he smelled the odor of marijuana coming from § 87(2)(b)'s vehicle and ordered him to exit so he could search the car. § 87(2)(b) complied and told PO Orleans that his son may have smoked marijuana in the car when he borrowed it earlier in the day. PO Orleans frisked § 87(2)(b)'s pants pockets and searched them in order to determine whether § 87(2)(b) had marijuana or marijuana residue on his person. PO Orleans did not recover any marijuana pursuant to the frisk and search. PO Orleans searched the front and rear passenger areas of § 87(2)(b)'s vehicle. PO Orleans saw that the residue he noticed earlier was not marijuana, but either pieces of leaves or cigarette tobacco. PO Orleans searched the trunk of the vehicle and found two Ziplock bags of marijuana and an unburned marijuana cigarette. During his CCRB interview, PO Orleans stated that he decided not to issue § 87(2)(b) a summons for running the stop sign because he had no a record of moving violations (**Board Review 09**).

§ 87(2)(g) The officers pulled § 87(2)(b)'s vehicle over for running a stop sign. PO Moreira did not witness the moving violation, but PO Orleans told her it had occurred. As the officers approached the vehicle, PO Moreira noticed the odor of marijuana, but she could not recall if the odor was from burnt or unburnt marijuana (**Board Review 10**).

Footage from PO Orleans' Body Worn Camera shows that, at 00:40 on the media player visible at the bottom of the screen, § 87(2)(b) acknowledges that he "jumped" the stop sign. At 3:40, PO Orleans tells § 87(2)(b) that his vehicle smells of marijuana and § 87(2)(b) says that his son borrowed the car earlier in the day. At 4:05, PO Orleans frisks and searches § 87(2)(b). At 4:35, PO Orleans searches the front and rear seats of § 87(2)(b)'s car as well as the center console. The footage does not capture the alleged marijuana residue. At 9:00, PO Orleans searches the trunk and finds a bag of marijuana in a blue backpack.

Unless directed to proceed by a police officer, every driver of a vehicle approaching a stop sign shall stop at a clearly marked stop line (New York State Vehicle and Traffic Law, Section 1172) (**Board Review 11**). The smell of marijuana is sufficient to provide officers with probable cause to search a vehicle and its occupants (People v. Chestnut 43 A.D. 2d 260, 1974) (**Board Review 12**).

§ 87(2)(g) it is recommended that **Allegations A and B** be closed as **exonerated**.

PO Orleans and PO Moreira both said they detected the odor of marijuana upon approaching § 87(2)(b)'s vehicle. The BWC footage also shows that PO Orleans recovered marijuana from the vehicle. § 87(2)(b) acknowledged that his son had recently borrowed the car and may have smoked marijuana inside of it. § 87(2)(g)

It is therefore recommended that **Allegations C, D and E** be closed as **exonerated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 13**).
- PO Orleans has been a member of service for two years and has been a subject in one additional CCRB complaint and one additional allegation, which was not substantiated. § 87(2)(g)
- PO Moreira has been a member of service for 15 years. This is the first CCRB complaint in which PO Moreira has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On February 14, 2020, a Notice of Claim inquiry was sent to the New York City Office of the Comptroller and will added to the case file upon its receipt (**Board Review 14**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date